

Housing Code, 2026

Points-based allocation, tenancy, maintenance, homeownership, and appeals for First Nation housing

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Replaces	Any housing policy of the First Nation in force when this Code is adopted, to the extent of any conflict.
Comes into force	On the date of the Resolution adopting it. The provisions listed in section 35.2 may then be changed only with the approval of the Electors.
Appeals	To the Appeals Panel under the Appeals and Complaints Code (Document 16).
Legal review	To be reviewed by legal counsel before adoption.

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HOUSING CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS the Fort McMurray No. 468 First Nation has the inherent Aboriginal and Treaty right to govern its own affairs, including the use and management of its reserve lands and housing, recognized and affirmed by section 35 of the *Constitution Act, 1982*; and

WHEREAS housing owned or administered by the First Nation is held for the benefit of all Members, and decisions about who receives it shall be made under published rules that every Applicant can check; and

WHEREAS Members who live off the Reserves have the same right as other Members to apply for housing;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1 Interpretation and Application

1 Short Title and Application

- 1.1 This Code may be cited as the *Housing Code of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 This Code applies to all residential units on the Reserves that are owned, managed, or administered by the First Nation, including units funded in whole or in part by a government or government agency.
- 1.3 This Code does not apply to a home held by a Member under a Certificate of Possession or other lawful individual interest, except as provided in Part 9.
- 1.4 Where this Code conflicts with a term of a funding or operating agreement for a unit, the agreement prevails to the extent of the conflict for that unit, and the Housing Manager shall report the conflict to the Committee.
- 1.5 Nothing in this Code limits any right or protection under the *Family Homes on Reserves and Matrimonial Interests or Rights Act*, S.C. 2013, c. 20, including emergency protection orders and the rights of a surviving spouse or common-law partner.

2 Definitions

2.1 In this Code:

- (a) "Appeals Panel" means the panel established by the Appeals and Complaints Code;
- (b) "Applicant" means a Member who has applied for Band Housing under Part 3;
- (c) "Application Number" means the number assigned to an application under section 7.3;
- (d) "Band Housing" means a residential unit to which this Code applies;
- (e) "Committee" means the Housing Allocation Committee established under section 5;
- (f) "Council" means the Chief and Councillors of the First Nation;
- (g) "Elder" means a Member who is at least sixty (60) years of age;
- (h) "Elector" has the meaning given in the Customary Election Regulations of the First Nation;
- (i) "Housing Contribution" means the monthly amount payable by an Occupant under the schedule adopted under section 19;
- (j) "Housing List" means the list of Applicants maintained under Part 4;
- (k) "Housing Manager" means the employee of the First Nation responsible for day to day housing operations;
- (l) "Immediate Family" has the meaning given in the Customary Election Regulations of the First Nation;
- (m) "Member" means a person whose name appears on the Membership List of the First Nation, whether the person lives on or off a Reserve;
- (n) "Occupant" means a Member who has signed a Tenancy Agreement, and includes the members of their household for the purposes of Part 6;
- (o) "Points" means the points assigned to an application under section 9;
- (p) "Ratification Vote" means a vote of the Electors in which a majority of the votes cast are in favour and at least twenty-five percent (25%) of the Electors on the List of Electors cast a ballot;
- (q) "Reserve" means a reserve of the First Nation;
- (r) "Resolution" means a motion approved by a majority of the members of Council present at a duly convened meeting of Council at which a quorum is present, and recorded in a written Band Council Resolution; and
- (s) "Tenancy Agreement" means the written agreement between the First Nation and an Occupant under Part 6.

Part 2

Administration

3 Council

- 3.1 Council is responsible for housing policy, the housing budget, the housing development plan, and the Housing Contribution schedule, and shall make those decisions only by Resolution.
- 3.2 No member of Council shall take part in, vote on, direct, or attempt to influence any decision about an individual application, Points, allocation, transfer, Tenancy Agreement, repair priority, or ending of a tenancy. A member of Council who receives a request from a Member about such a matter shall refer the Member to the Housing Manager or the Committee.
- 3.3 The Councillor holding the Housing and Infrastructure Portfolio shall oversee the administration of this Code and report to Council and Members, but has no vote on individual allocations.

4 Housing Manager

- 4.1 The Housing Manager reports to the Band Manager and shall not be a member of Council or Immediate Family of a member of Council.
- 4.2 The Housing Manager shall:
 - (a) receive applications, assign Application Numbers, assess Points, and maintain the Housing List;
 - (b) verify eligibility and Points, and prepare allocation recommendations for the Committee;
 - (c) deliver written offers under section 13;
 - (d) prepare and administer Tenancy Agreements;
 - (e) coordinate maintenance and repairs and keep the maintenance log under section 23;
 - (f) carry out annual inspections;
 - (g) prepare the reports required by Part 10; and
 - (h) report in writing to the Committee any request or pressure from any person to depart from this Code.

5 Housing Allocation Committee

- 5.1 There shall be a Housing Allocation Committee of five (5) Members:
- (a) four (4) Members elected by the Electors at the Annual General Assembly for staggered two (2) year terms, at least one (1) of whom lives off the Reserves; and
 - (b) one (1) Elder chosen by the four (4) elected members.
- 5.2 No person may serve on the Committee who is a member of Council, an employee of the First Nation working in housing, or Immediate Family of a member of Council or of the Housing Manager.
- 5.3 A Committee member shall declare, and shall take no part in, any matter involving an Applicant or Occupant who is their Immediate Family, or in which they have any other personal interest.
- 5.4 The Committee shall:
- (a) decide every allocation, transfer, and emergency placement under Parts 4 and 5;
 - (b) decide reconsiderations under Part 11 and hearings on ending a tenancy under Part 8;
 - (c) audit the Points of at least ten percent (10%) of the applications on the Housing List each quarter, chosen at random; and
 - (d) present an annual report to Members at the Annual General Assembly.
- 5.5 A quorum of the Committee is three (3) members. Decisions shall be made at meetings, recorded with reasons, and signed by the members present.
- 5.6 Council shall not interfere with, dismiss, or obstruct the Committee. A member may be removed only by a majority of Electors voting at an Annual General Assembly or Special Meeting, and a vacancy in an elected position shall be filled at the next Annual General Assembly or, if that is more than six (6) months away, by the remaining members until then.
- 5.7 Every member of the Committee is an Official under Part 7 of the Conduct and Conflict of Interest Code.

Part 3

Eligibility and Applications

6 Eligibility

- 6.1 A Member is eligible to apply for Band Housing if the Member:
- (a) is at least eighteen (18) years of age, or is under eighteen (18) years of age and the parent of a dependent child; and
 - (b) does not currently occupy Band Housing, unless applying for a transfer under section 15.
- 6.2 A Member who lives off the Reserves has the same right to apply as a Member who lives on a Reserve.

7 Applications

- 7.1 Applications shall be made in writing, on the form published by the Housing Manager, in person, by mail, or electronically.
- 7.2 The application shall state the household size and composition, current housing conditions, any accessibility needs, and the Points claimed, with supporting documents.
- 7.3 The Housing Manager shall acknowledge each application in writing within fourteen (14) days, assign it an Application Number, and give the Applicant a Points statement under section 10.
- 7.4 An incomplete application shall be returned with a written explanation, and the Applicant keeps the original application date if the missing information is provided within sixty (60) days.
- 7.5 Applicants shall update their information at least once a year. The Housing Manager shall contact each Applicant who has not done so, and shall not remove an application unless the Applicant cannot be reached after written notice to their last known address, email, and telephone over at least sixty (60) days.

Part 4

Housing List and Points

8 Emergency Placements

- 8.1 A household that is homeless, fleeing family violence, or living in housing that is condemned or unsafe to a degree that presents an immediate risk to health or safety, as verified by the Housing Manager, may be placed by the Committee in the next suitable unit ahead of the Points ranking.
- 8.2 Where the Committee cannot meet in time, the Housing Manager may make an emergency placement for up to sixty (60) days and shall report it to the Committee within three (3) business days. The Committee shall confirm or end the placement at its next meeting.
- 8.3 Every emergency placement shall be published under section 12.5, identified as an emergency placement.

9 Points

- 9.1 Every application on the Housing List, other than an emergency placement, shall be ranked by Points, assessed as follows:

Factor	Points
Each full year the application has been on the Housing List, counted from the application date, up to a maximum of ten (10)	1 per year
Overcrowding: the household's current housing has more than two (2) persons per bedroom	5
Health or accessibility need of a household member, supported by a letter from a physician, nurse practitioner, or other licensed health professional dated within one hundred and eighty (180) days before the Points are assessed	5
The Applicant does not currently occupy Band Housing	5
The household includes a dependent child under eighteen (18) years of age or an Elder	3
The Applicant owes Housing Contributions under a previous Tenancy Agreement and has no written repayment arrangement in good standing	minus 5

- 9.2 Where two (2) or more applications have the same Points, the one with the earlier application date ranks higher. Where the application dates are the same, the lower Application Number ranks higher.
- 9.3 No Points may be assigned for any factor not listed in section 9.1. Points may not be assigned or removed on the basis of an Applicant's place of residence, family, political views, complaints, or relationship to any member of Council or employee.
- 9.4 The health letter under section 9.1 is kept confidential by the Housing Manager. Only the fact that the factor applies is recorded on the Housing List.

10 Points Statements and Reassessment

- 10.1 The Housing Manager shall give each Applicant a written Points statement showing each factor applied and the total, when the application is acknowledged, after each annual update, and whenever the Points change.
- 10.2 An Applicant may ask for reassessment at any time by providing evidence that a factor has changed. The Housing Manager shall reassess within fourteen (14) days and issue a new Points statement.
- 10.3 Points for time on the Housing List increase automatically on each anniversary of the application date.
- 10.4 An Applicant who disagrees with a Points statement may ask the Committee for reconsideration under section 31.

11 Publication of the Housing List

- 11.1 The Housing List shall be published on the website of the First Nation and posted at the band office, and updated each month, showing for each application only the Application Number, the application date, the household size, the unit size needed, and the total Points, in ranked order. Names and personal circumstances shall not be published.
- 11.2 Each Applicant may, on request, see the information recorded about their own application and their Points.

Part 5

Allocation

12 Allocation Process

- 12.1 When a unit becomes available, the Housing Manager shall identify the highest-ranked application whose household size and needs match the unit, and shall present a written recommendation to the Committee with the Points statement of that application and of the next two (2) ranked applications that match the unit.
- 12.2 The Committee shall decide the allocation at a meeting, with reasons. No unit may be allocated other than by a decision of the Committee under this Part or an emergency placement under section 8.
- 12.3 A unit shall be allocated to the highest-ranked matching application unless:
 - (a) the unit has been adapted for accessibility and a lower-ranked application has a household member who needs those adaptations; or
 - (b) a household member has a documented medical need that the unit meets and the higher-ranked unit sizes do not.
- 12.4 A decision under section 12.3 requires the agreement of all Committee members present, with written reasons.
- 12.5 Every allocation shall be published within fourteen (14) days, showing the Application Number, the unit size, the Points of the application, whether the highest-ranked matching application received the unit, and, if not, the paragraph of section 12.3 relied on.
- 12.6 A unit that remains vacant for more than sixty (60) days shall be reported to the Committee with the reason.

13 Offers

- 13.1 The Housing Manager shall deliver a written offer to the Applicant within fourteen (14) days after the Committee's decision.
- 13.2 The Applicant has fourteen (14) days after receiving the offer to accept it in writing. If the Applicant does not accept, the unit shall be offered to the next-ranked matching application.
- 13.3 An Applicant who refuses two (2) suitable offers without a reasonable explanation loses the Points for time on the Housing List accrued before the second refusal.
- 13.4 Before taking possession, an Applicant who owes Housing Contributions under a previous Tenancy Agreement shall enter into a written repayment arrangement.

14 Allocations Contrary to this Code

- 14.1 An allocation made other than in accordance with this Part or section 8 is void.
- 14.2 Where the Committee or the Appeals Panel finds that an allocation is void:
- (a) the Applicant who should have received the unit shall be offered the next suitable unit ahead of every other application except an emergency placement;
 - (b) the occupant of the unit shall be given written notice and shall be offered a Tenancy Agreement for the unit only if they would have been entitled to it under this Part, and otherwise the unit shall be reallocated under this Part at the end of ninety (90) days after the notice; and
 - (c) the finding shall be published and reported to the Integrity Commissioner.
- 14.3 A person who makes or directs a void allocation is in breach of this Code, and of the Conduct and Conflict of Interest Code where that person is a member of Council or an Official.

15 Transfers

- 15.1 An Occupant may apply for a transfer to a unit better suited to a change in household size or accessibility needs. A transfer application is ranked by Points with other applications, and the factor for not occupying Band Housing does not apply to it.

Part 6

Tenancy

16 Tenancy Agreements

- 16.1 Every Occupant shall sign a written Tenancy Agreement before taking possession.
- 16.2 The Tenancy Agreement shall set out the term; the Housing Contribution and how it is calculated; the responsibilities of the Occupant and of the First Nation; the rules on repairs, alterations, and subletting; the grounds and process for ending the tenancy under Part 8; and the reconsideration and appeal process under Part 11.
- 16.3 A copy of the signed Tenancy Agreement and of this Code shall be given to the Occupant.

17 Occupant Responsibilities

- 17.1 An Occupant shall keep the unit clean and in good condition, report maintenance needs promptly, pay the Housing Contribution when due, and allow inspections under section 24.
- 17.2 An Occupant shall not sublet or assign the unit, or make structural changes to it, without the written approval of the Housing Manager.
- 17.3 An Occupant is responsible for damage to the unit beyond normal wear and tear caused by the Occupant, their household, or their guests.

18 Household Changes

- 18.1 When the Occupant who signed the Tenancy Agreement dies or leaves the unit, a remaining household member who is a Member and at least eighteen (18) years of age may apply to the Committee to take over the tenancy, and the Committee shall give priority to a household member who has lived in the unit for at least one (1) year, subject to section 1.5.

19 Housing Contributions

- 19.1 Council shall adopt, by Resolution after a community meeting, a Housing Contribution schedule based on unit type and household income, with reduced rates for Elders and low-income households, and shall publish it.
- 19.2 A change to the schedule takes effect no sooner than ninety (90) days after it is published.
- 19.3 An Occupant who falls behind may enter into a written repayment arrangement with the Housing Manager, and no step to end a tenancy for arrears may be taken while an arrangement is in good standing.

Part 7

Maintenance and Inspections

20 Responsibility for Maintenance

- 20.1 The First Nation is responsible for maintaining the structure, safety, and basic systems of all Band Housing, including heating, plumbing, electrical systems, roofs, foundations, and ventilation.

21 Maintenance Requests

- 21.1 An Occupant may submit a maintenance request in writing, by telephone, or electronically, and shall be given a request number.
- 21.2 The First Nation shall respond to maintenance requests within these times:
- (a) emergency, meaning a risk to health or safety, including loss of heat in winter, gas leaks, flooding, or electrical hazards: within twenty-four (24) hours;
 - (b) urgent, meaning a problem affecting whether the unit can be lived in: within seven (7) days; and
 - (c) routine: within thirty (30) days.

22 Mould and Health Hazards

- 22.1 A report of mould, contaminated water, or another health hazard shall be treated as urgent, inspected within seven (7) days, and remediated according to a written plan given to the Occupant.

23 Maintenance Log

- 23.1 The Housing Manager shall keep a log of all maintenance requests, showing the request number, date, type, priority, and completion date, and a summary without names shall be published each month.

24 Inspections

- 24.1 The Housing Manager shall inspect each unit at least once each year, on at least forty-eight (48) hours' written notice except in an emergency, and shall give the Occupant a copy of the inspection report.
- 24.2 A summary of inspection results across all units shall be included in the annual housing report.

Part 8

Ending a Tenancy

25 Grounds

- 25.1 A Tenancy Agreement may be ended by the First Nation only for:
- (a) Housing Contributions unpaid for more than ninety (90) days with no repayment arrangement in good standing;
 - (b) serious or repeated damage to the unit beyond normal wear and tear;
 - (c) subletting or assigning without approval;
 - (d) conduct that seriously threatens the safety of neighbours, staff, or the unit;
 - (e) abandonment of the unit for more than ninety (90) consecutive days without notice or a reasonable explanation; or
 - (f) a finding under section 14.2 that the allocation was void.

26 Process

- 26.1 Before a tenancy is ended, the Housing Manager shall give the Occupant written notice of the grounds and at least thirty (30) days to remedy the problem where it can be remedied, and the Occupant shall be offered help to reach a repayment arrangement where the ground is arrears.
- 26.2 If the problem is not remedied, the Occupant is entitled to a hearing before the Committee, with at least fourteen (14) days' written notice, the right to be accompanied by a support person or representative, and the right to see the evidence relied on.
- 26.3 The Committee shall decide in writing with reasons within fourteen (14) days after the hearing, and may end the tenancy, dismiss the matter, or set conditions for continuing the tenancy.
- 26.4 A decision to end a tenancy takes effect no sooner than sixty (60) days after it is delivered, and not before any appeal under Part 11 is decided.
- 26.5 No Occupant shall be removed, and no locks changed, utilities cut off, or belongings removed, except in accordance with this Part and a by-law of the First Nation or an order of a court.
- 26.6 Before a household with dependent children or an Elder is removed, the Housing Manager shall refer the household to available support services.

27 Protection for Complaints

- 27.1 No Occupant or Applicant shall be penalized, lose Points, or have a tenancy ended because they made a complaint, requested records, or took part in any proceeding in good faith. The Whistleblower Protection Code applies to any such reprisal.

Part 9

Homeownership

28 Homeownership Program

- 28.1 Council may establish, by Resolution, programs for the purchase of existing Band Housing, rent-to-own agreements, the allocation of lots for new homes, and loan or equity support.
- 28.2 A Member is eligible for a homeownership program if the Member is eligible under section 6.1 and can show the ability to meet the program's ongoing costs.
- 28.3 Every homeownership opportunity shall be published and open to all eligible Members, with the selection criteria stated in advance. No unit or lot shall be offered to a particular Member outside this process.
- 28.4 Prices and terms shall be set by Resolution, after review by the Finance and Audit Committee, and shall not be designed to exclude lower-income Members.
- 28.5 Where a program involves the allotment of reserve land to a Member under section 20 of the *Indian Act*, the approval of the Minister required by that section shall be obtained, and the Member shall be told in writing what interest they will hold.

Part 10

Planning and Reporting

29 Housing Development Plan

- 29.1 Council shall adopt, every five (5) years, a housing development plan prepared with Member input, identifying housing needs on and off the Reserves, the number and type of units needed, funding sources, and a building and repair schedule.

30 Reports

- 30.1 The Housing Manager shall publish:
- (a) each month, the Housing List under section 11.1 and the maintenance log summary under section 23.1;
 - (b) each quarter, a report showing the units available, occupied, vacant, and under repair, the allocations and emergency placements made, the results of the Committee's audit of Points, and the housing budget compared with spending; and
 - (c) each year, a report showing inspection results, progress on the housing development plan, the homeownership program, and the housing budget compared with actual spending, to be presented at the Annual General Assembly.

Part 11

Reconsideration and Appeals

31 Reconsideration

- 31.1 An Applicant or Occupant who believes a decision of the Housing Manager or the Committee under this Code was wrong may ask the Committee in writing, within thirty (30) days after receiving it, to reconsider the decision.
- 31.2 The Committee shall decide within twenty-one (21) days, in writing with reasons.

32 Appeal to the Appeals Panel

- 32.1 An Applicant or Occupant may appeal a decision of the Committee on reconsideration, or a decision of the Committee to end a tenancy, to the Appeals Panel under the Appeals and Complaints Code within thirty (30) days after receiving it.
- 32.2 The Appeals Panel may confirm the decision, substitute a decision the Committee could have made, recalculate Points, declare an allocation void under section 14, or send the matter back to the Committee with directions.
- 32.3 Until the Appeals Panel is established, an appeal under this section shall be heard by a lawyer, retired judge, or person experienced in adjudication who is not a Member, an employee of the First Nation, or Immediate Family of a member of Council, selected by Council by Resolution.

Part 12

Conflicts of Interest

33 Conflicts

- 33.1 Every Committee member, employee, and member of Council shall disclose any personal interest in a housing decision and shall take no part in it.
- 33.2 An allocation to a member of Council, to the Housing Manager, to a Committee member, or to Immediate Family of any of them shall be identified as such when published under section 12.5.
- 33.3 Any person may report a breach of this Code to the Integrity Commissioner, where the breach involves a member of Council or an Official, or to the Band Manager, where it involves an employee.

Part 13

Coming into Force and Amendment

34 Coming into Force and Transition

- 34.1 This Code comes into force on the date of the Resolution adopting it.
- 34.2 Within sixty (60) days after this Code comes into force, the Housing Manager shall transfer every existing housing application to the Housing List with its original application date, assign Application Numbers, assess Points, and give each Applicant a Points statement.
- 34.3 Existing Occupants continue in their units, and shall be offered a Tenancy Agreement under Part 6 within one hundred and eighty (180) days, on terms no less favourable to them than their existing arrangement.
- 34.4 Council shall hold a Special Meeting of Electors within ninety (90) days after this Code comes into force to elect the first members of the Committee, two (2) of whom shall serve an initial term of one (1) year so that terms are staggered. Until then, no allocation may be made except an emergency placement under section 8, by the Housing Manager with a written report to Council and publication under section 12.5.
- 34.5 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

35 Amendment

- 35.1 Council may amend this Code by Resolution only after the proposed amendment has been published to Members for at least thirty (30) days and a community meeting has been held.
- 35.2 An amendment to Part 2, Part 4, Part 5, Part 8, Part 11, or this section, or any amendment that reduces a right of Members, Applicants, or Occupants, has no effect unless it is approved by the Electors in a Ratification Vote.
- 35.3 Council may not suspend any provision of this Code.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code sets rules for housing allocation by points, tenancy, maintenance, ending a tenancy, homeownership, and appeals. These notes are not part of the Code.

2. Adoption

- Council adopts the Code by Resolution. It comes into force on the date of the Resolution (section 34.1).
- The Electors ratify the Code. After ratification, the amendments listed in section 35.2 require the approval of the Electors.

3. How the points work

Every application, other than an emergency placement, is ranked by points. Each Applicant receives a written points statement showing how the total was reached (section 10).

Factor	Points
Each full year on the Housing List, up to ten	1 per year
More than two persons per bedroom	5
Health or accessibility need, with a health professional's letter dated within 180 days	5
Not currently in Band Housing	5
Dependent child or Elder in the household	3
Housing arrears with no repayment arrangement	minus 5

- Ties go to the earlier application date (section 9.2).
- A written offer is delivered within 14 days, and the Applicant has 14 days to accept (section 13).
- An allocation made outside the rules is void. The Applicant who should have received the unit gets the next suitable unit (section 14).

4. Key provisions

- Council sets housing policy, the budget, and the Housing Contribution schedule. Members of Council take no part in decisions about individual households (section 3).
- A Housing Allocation Committee of four Members elected at the Annual General Assembly, including one living off the Reserves, and one Elder. The Committee audits a random ten percent of points each quarter (section 5).
- The Housing List is published monthly in ranked order by application number, without names (section 11).
- Response times for emergency, urgent, and routine maintenance (section 21).
- Grounds, notice, and a hearing before a tenancy is ended. No removal except under a by-law or court order (sections 25, 26).
- Appeals to the Appeals Panel (section 32).
- Rights under the Family Homes on Reserves and Matrimonial Interests or Rights Act are preserved (section 1.5).

5. Legal sources

Source	Provision
Indian Act, s. 20	Lawful possession of reserve land is allotted by the council with the approval of the Minister, and evidenced by a Certificate of Possession
Indian Act, s. 81(1)(p)	By-laws for the removal and punishment of persons trespassing on the reserve
Family Homes on Reserves and Matrimonial Interests or Rights Act	Rights in the family home on reserve, emergency protection orders, and rights of a survivor

6. Records required before adoption

- Any existing housing policy and the current waiting list with application dates.
- Funding and operating agreements for housing units (section 1.4).
- Any by-law of the First Nation dealing with trespass or the recovery of possession of housing (section 26.5).